

## 25SMCV02299 25SMCV02299

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-30

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### TENTATIVE RULING

#### DEPARTMENT 207

#### HEARING

DATE July 30, 2026

#### CASE

NUMBER 25SMCV02299

#### MOTION Motion for Relief from

Dismissal

#### MOVING

PARTY Plaintiff Faren Hom

#### OPPOSING

PARTY none

#### BACKGROUND

This case arises from an automobile collision. On April 30, 2025, Plaintiff Faren Hom ("Plaintiff") brought suit against Defendant Shirzad Saadat ("Defendant"), alleging Defendant reversed his vehicle into Plaintiff's while Plaintiff was at a complete stop waiting to make a right-hand turn.

Plaintiff failed to appear at the August 28, 2025 Case Management Conference. As such, the Court continued

the Case Management Conference to January 9, 2026 and set an Order to Show Cause re Sanctions for failure to file a proof of service of the summons and complaint and an Order to Show Cause re Sanctions for counsel's failure to appear at the August 28, 2025 Case Management Conference.

Neither Plaintiff nor Plaintiff's counsel appeared at the January 9, 2026 hearing, and Plaintiff failed to file any objection or response to the Order to Show Cause. Moreover, the Court determined that Plaintiff had not filed a proof of service demonstrating service of the summons and complaint on the Defendant. As such, the Court dismissed the action without prejudice.

Plaintiff now moves for an order granting relief from the dismissal pursuant to Code of Civil Procedure section 473. The motion is unopposed.

## ANALYSIS

I.

### DISCRETIONARY AND MANDATORY RELIEF

“Proceeding to judgment in the absence of a party is an extraordinary and disfavored practice in Anglo–American jurisprudence: The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (Au-Yang v. Barton (1999) 21 Cal.4th 958, 963 [cleaned up].)

Code of Civil procedure section 473 “includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 25 (hereafter Minick).) “Section 473 is a remedial statute to be “applied liberally” in favor of relief if the opposing party will not suffer prejudice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (Minick, supra, 3 Cal.App.5th at p. 24 [cleaned up].)

The party or the legal

representative must seek such relief "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b)); see *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 ["because more than six months had elapsed from the entry of default, and hence relief under section 473 was unavailable"]; *People v.*

*The North River Ins. Co.* (2011) 200 Ca.App.4th 712, 721 [motion for relief under section 473 must be brought "within a reasonable time, in no case exceeding six months"]. "The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period." (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340, citations omitted.)

A.

DISCRETIONARY

RELIEF

Per Code of Civil Procedure

section 473, subdivision (b), a court may "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect."

B.

MANDATORY

RELIEF

Notwithstanding any other requirements of this

section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

(Code Civ. Proc., § 473, subd. (b).) "In considering whether the trial court properly denied relief under section 473(b), the first question is the sufficiency of defendants' showing of attorney fault, if believed, to trigger

the mandatory relief provisions of that statute.” (Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868, 896, disapproved on other grounds by Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830 (hereafter Standard).) “Under section 473(b), a party is entitled to relief from a default and resulting judgment whenever, on timely application for relief, his attorney ‘attest[s] to his or her mistake, inadvertence, surprise, or neglect’ in connection with the default or the judgment.” (Ibid.)

Here, the Court dismissed the action on January 9, 2026 and Plaintiff filed the instant motion on July 6, 2026, just under the six-month deadline.

Plaintiff argues that the failures to appear was due to an internal error by counsel's staff in mistakenly believing the case had already been dismissed and removing it from counsel's calendar. The confusion apparently arose because two similar cases were filed between the same parties.

In support of the motion, Plaintiff advances the attorney Declaration of Steven P. Scandura, which provides:

2. This is an automobile accident case. Plaintiff FAREN HOM had previously filed suit in the matter Faren Hom v. Shirzad Saadat, LASC Case No. 23SMCV02857, where she was represented by Jerry Rulsky, Esq., of Morgan and Morgan, LP. That case was dismissed without prejudice by Plaintiff's former attorney, who dropped the case without reaching a resolution of the claim. I have attached hereto as Exhibit “A” a true and correct copy of the request for dismissal filed in the first action, which was obtained from the Court's website.

3. I filed this current action after I was hired by Plaintiff, who is a prior client of mine from a business matter, because I believe the case has merit and is worth pursuing. I understood that her prior counsel dropped the case, I believe because it was not an admitted liability case.

4. I maintain an office calendar with all hearings, appearances, deadlines, and other matters listed and updated. I work off the calendar and rely on it to schedule my work and appearances. The first case management conference set for August 28, 2025, was initially put on my

calendar prior to the hearing. However, my assistant mistakenly confused the dismissal filed in Case No. 23SMCV02857 for this case and took the hearing off calendar by marking it yellow and by removing it from the time slot. This is how we mark items as "off calendar." I did not notice the mistake and did not appear at the hearing because I thought it was off calendar.

5. Thereafter, I received an email notice stating that an Order to Show Cause had been set for January 9, 2026. I put that hearing on calendar along with a note to prepare and file a declaration for the Court. However, for an unknown reason I failed to remember it and in December of 2026, when my assistant asked me about the case, stating that it was dismissed and that we had a dismissal on file, I agreed that it was off calendar and put no further thought into it. This was carelessness on my part. I should have pulled the file and confirmed it. However, neither of us noticed the case number difference and I failed to realize that my assistant and I were confusing the two cases. Therefore, I failed to appear at the January 9, 2026, hearing and did not realize that the notice of dismissal I subsequently received from the Court was for a case that should not have been dismissed. I believed that it was properly dismissed when in fact it was the wrong case.

6. I was recently contacted by my client about the status of her case. It then hit me that the wrong case was dismissed in January 2026, and that I had made this error. I researched what had happened and then prepared this motion.

7. This case should not be dismissed and should be prosecuted. But for the error and confusion over the identical case names, I would have appeared at the hearings and properly prosecuted this case.

(Scandura  
Decl. ¶¶ 2-7.)

Therefore, Counsel has demonstrated that the failure to appear (and resulting dismissal) was due to Counsel's mistake, inadvertence, surprise, and/or neglect in confusing the case that prior counsel had dismissed with this case, warranting relief.

## CONCLUSION

For the foregoing reasons, the Court

grants Plaintiff's motion for relief from dismissal, and the Court vacates the dismissal entered on January 9, 2026.

Further, the Court sets an Order to Show Cause on September 3, 2026 at 8:30 A.M. in Department 207 regarding why the action should not be dismissed for failure to serve the summons and complaint, and/or for failure to prosecute the action, under Code of Civil Procedure sections 128, 581 and 583.150.

Any opposition or response to the Order to Show Cause shall be filed no later than 9 court days before the scheduled hearing. The Court may dismiss the action at the time of the Order to Show cause hearing if counsel or the parties fail to appear, or fail to provide good cause for the delay in serving the summons and complaint, and/or in prosecuting the action. In addition, counsel of record for Plaintiff shall appear in person at the Order to Show Cause hearing.

The Clerk of the Court shall provide notice of the Court's orders.

DATED:

July 30, 2026 \_\_\_\_\_/s/ \_\_\_\_\_

Michael E. Whitaker

Judge  
of the Superior Court